

		the fees claimed appears generally reasonable given the nature of the litigation and procedural history of this case. Defendant has not shown further reduction is warranted. With the foregoing reductions, the fee award is \$22,444.12 (\$28,022.50 minus \$4,203.38 minus \$1,375). Plaintiff's unchallenged request for costs in the amount of \$1,155.11 is GRANTED. (California Rules of Court, rule 8.278; <i>Bach v. County of Butte</i> (1989) 215 Cal.App.3d 294, 308.) Based on the foregoing, the motion for attorney fees and costs on appeal is GRANTED to award Plaintiff fees and costs in the total amount of \$23,599.23 (\$22,444.12 in fees + \$1,155.11 in costs). Plaintiff's request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code §452(d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Plaintiff is ordered to submit a proposed judgment in accordance with this ruling. Counsel for Plaintiff is to give notice.
5.	In re 435 West Center Street #229, Anaheim, CA 92805 2024-01376871	Before the court is the motion of claimant Jeffrey Luzzi (Claimant) to claim surplus proceeds of trustee's sale that were deposited with the court by petitioner Clear Recon Corp. This is a renewed motion after the court denied the prior motion on November 21, 2024. The hearing on the renewed motion is CONTINUED TO MAY 22, 2025, AT 2:00 P.M., IN DEPARTMENT C23. Although the proof of service Claimant filed (ROA 65) shows the renewed motion was served on a number of entities that may have or may have had claims to the surplus funds, the motion was not served on Umpqua Bank, which may be the only other party potentially asserting a claim to the remaining surplus funds. The motion was served on Sterling Saving Bank DBA Argent Bank, which appears to be Umpqua's predecessor in interest, the court must have sufficient evidence showing the motion was served on all potential claimants identified by the trustee before reaching the merits of the motion.

		Accordingly, the motion is continued as stated above for Claimant to re-serve the motion on all parties, including Umpqua, to provide statutory notice of the continued hearing. Claimant is ordered to file a new proof of service at least nine court days before the continued hearing date. Finally, Claimant is ordered to give notice of this ruling.
6.	Clark v. Galaviz <i>2020-01136803</i>	Before the court is the motion to seal brought by plaintiff Holly Clark, through her guardian ad litem Brandi Clark (Plaintiff). The motion is DENIED as set forth below. On October 27, 2021, a notice of settlement was filed in this action. On May 2, 2022, this action was called for a hearing on an order to show cause re dismissal of settled case, and there were no appearances. The court therefore dismissed the case. There has been no motion to set aside the dismissal. "When a dismissal has properly been filed, the trial court loses jurisdiction to act in the case." (<i>Tire Distributors, Inc. v. Cobrae</i> (2005) 132 Cal.App.4th 538, 542.) In addition to the court lacking jurisdiction to grant this motion, the motion lacks merit. "If the party seeking the sealing order files the documents with the court before the motion to seal is granted, the right to move for an order sealing the documents is waived. The court cannot entertain a later motion to seal documents that are already a matter of public record. (<i>Savaglio v. Wal-Mart Stores, Inc.</i> (2007) 149 Cal.App.4th 588, 601.)" (Weil & Brown, Cal. Prac. Guide: Civ. Prod. Before Trial (The Rutter 2025) at ¶9:417.5.) Here, Plaintiff seeks to seal documents at ROA 1-38 which were filed in the public record between March 5, 2020, and May 3, 2022, and have remained available to the public. Not only was this motion brought after all documents were filed in the public record, but this motion was brought nearly three years after the final document was filed without any explanation for this delay. Furthermore, the proposed sealing is not narrowly tailored as required by California Rules of Court, rule 2.550(d). Here, Plaintiff seeks to seal numerous documents prepared by the court, including minute orders, proofs of service, and e-filing rejection notices.